



File No.: EXP202203860

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by ASESORIA JURIDICA AUGUSTA SL (*hereinafter, the appellant) on behalf of the entity ***COMUNIDAD.1 against the resolution issued by the Director of the Spanish Agency for Data Protection dated February 27, 2023, and based on the following

FACTS

FIRST: On February 27, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection within the framework of file EXP202203860, by virtue of which a sanction was imposed on the entity ***COMUNIDAD.1 amounting to €1000 (one thousand euros) for having installed a video surveillance camera system without any legitimate basis for doing so under the terms of the current GDPR.

TO IMPOSE on ***COMUNIDAD.1, with NIF ***NIF.1, for an infringement of Article 6.1 e) of the GDPR, classified under Article 83.5 of the GDPR, a fine of €1000.

This resolution was notified in a timely manner to the appellant prior to the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (LOPDGDD), and subsidiarily under Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00530/2022, the following was recorded:

First. On 03/24/22, a complaint was received informing this agency of the presence of a video surveillance system by the complained party without the consent of the owners, nor informing the entire group of neighbors of the property, carrying out a "data processing" not in accordance with the law.

Second. It is accredited that the main responsible party is the Community of Owners ***COMUNIDAD.1 with NIF ***NIF.1.

Third. The Community of Owners submitted two documents dated 07/19/21 and 07/19/22 in which the following is stated:

"After extensive deliberation, the attending Property Owners unanimously agree to accept said budget and that it be urgently proceeded with its installation."

Fourth. It is accredited that the documentation submitted has formal defects, being insufficient to prove that the installation of the camera system was carried out with the backing required by the current regulations.

Fifth. No documentation has been provided that reliably confirms the notification to the entire group of owners regarding the installation of the system, nor is there any evidence of their express consent reflected in any manner.

THIRD: The appellant submitted on April 11, 2023, to this Spanish Agency for Data Protection, a recourse for reconsideration, fundamentally basing it on the following points:

"However, in the opinion of this party, it is not in accordance with the law because in its reasoning, and specifically in the arguments put forward in Legal Basis III, the documentary evidence provided by this party in the corresponding Allegations procedure regarding prior consent for the installation of video surveillance cameras through an agreement of the General Assembly of the Community of Owners and consequent legal protection and regulatory compliance in its installation is overlooked."

Specifically, it refers in the first paragraph of Legal Basis III to the installation of the video surveillance system without the informed consent of the entire group of property owners, despite this party having submitted the Minutes of the Extraordinary General Assembly held on July 19, 2021, from which the binding and executive nature of the agreement regarding the installation of video surveillance cameras is derived.

I REQUEST that, having presented this document within the legally conferred period for this purpose, it

be admitted, and in accordance with the allegations made in the body of the same, it be agreed to declare the nullity of the Resolution of the sanctioning procedure notified to this party, rendering it ineffective."

LEGAL GROUNDS

I

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD).

II

In this case, the document qualified as presented to this agency on 04/11/23 is examined, supporting the claim on the absence of evaluation of the documentary evidence presented as

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Legitimizing basis of the "data processing" of the neighbors of the property
Community of Owners ***COMMUNITY.1.

Initially, a complaint was received against the respondent for the presence of a video surveillance camera system without the authorization of the Board of Owners, with the complainant stating the presence of the cameras in the access portal to the property "without having informed the entire group of owners."

According to Article 17.1 of the Horizontal Property Law, to incorporate non-essential services or improvements for the conservation, habitability, and accessibility of the property, such as video surveillance cameras, the favorable vote of three-fifths of the owners is required, which must also represent three-fifths of the participation quotas.

It will not be necessary to achieve this majority of three-fifths during the Owners' Meeting. If a simple majority of owners in favor is reached, who also hold a majority of participation quotas, the agreement must be notified to the neighbors who did not attend the meeting, who will have 30 days from receiving the notification to oppose it; if they do not do so, their votes will be counted as favorable to reach the majority of three-fifths.

As the only evidence, the respondent provides a document that is not accepted as valid by this body, as it lacks the minimum validity requirements established by current regulations.

From the perspective of data protection, the respondent must be able to credibly demonstrate that they have the informed consent of all the neighbors of the property, in addition to being able to prove it beyond any doubt to this body.

It is reminded that the minutes of a meeting of owners must be signed by the corresponding President and duly certified by the Administrator (Secretary) who attests to what occurs in the meeting. The agreements of the Owners' Meetings will be reflected in a Minutes Book duly registered in the Property Registry.

Article 19.3 of the LPH states that the minutes must be closed with the signature of the Secretary and President, thus ruling out the necessity for all owners to sign.

The documentation provided by the respondent suffers from a series of formal defects that cannot be considered an admissible means of proof in law, which would substantiate what they intend to assert before this body, namely, that a meeting was legally convened and that those present decided on the installation of a "video surveillance system."

No documentation is provided that proves the notification of the call to the entire group of owners or how they became aware of it.

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point of the Agenda to be discussed (e.g., postal notification to the address of the property, etc.), nor

has any explanation been provided in this regard.

This body has already proceeded to analyze the issue once again raised by the respondent, considering that the document presented was not valid as an admissible means of evidence in law. Furthermore, the respondent has had the necessary time to provide proof of the required consent, including by requesting again from the group of property owners to determine the veracity of the events with their signature and ID as an example.

The respondent, in the interest of their right to defense, may deny the facts attributed to them or even adopt a "passive" stance regarding the same; they may even defend themselves by maintaining a position that aligns with their interests (whether the facts they present are true or not), which does not prevent this body from not considering them as true, but rather valuing them collectively when imposing the appropriate administrative sanction, especially when clear contradictions have been evidenced in the arguments presented in the overall assessment of the evidence provided by both parties.

The jurisprudence of the Constitutional Court [STC 142/2009, of June 15] maintains this criterion by reminding that the accused is not obliged to tell the truth, but may remain silent totally or partially, or even lie, by virtue of their rights not to testify against themselves and not to confess guilt (Art. 24.2 CE); however, our constitutional guarantees tribunal also highlights certain limits: although the accused is not subject to the legal obligation to tell the truth in a criminal process and can indeed lie, this possibility does not mean, in any way, that the right to defense enshrines a fundamental right to lie that can be claimed before the courts to try to justify that their right to effective judicial protection has been violated; that is to say, according to the jurisprudence, it can be affirmed that an accused has the right to lie openly [STS 178/2013, of January 29] but with certain limits.

Article 28 "in fine" of Law 39/2015 (October 1) states the following: "7. The interested parties shall be responsible for the veracity of the documents they present."

In relation to the statements made by the appellant, reiterating basically the allegations already presented throughout the sanctioning procedure, it should be noted that all of them have already been analyzed and dismissed, so we refer for reasons of procedural economy to reinforce the arguments already presented.

III

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution, nor is it considered that there is any "error" in relation to the

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document presented or in the free assessment of the same carried out by the instructor (a) of the corresponding procedure.

Having seen the cited provisions and others of general application,
the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by ASESORIA JURIDICA AUGUSTA SL on behalf of the entity Community of property owners ***COMUNIDAD.1, against the resolution of this Spanish Agency for Data Protection issued on February 27, 2023, in file EXP202203860.

SECOND: TO NOTIFY this resolution to the entity ASESORIA JURIDICA AUGUSTA SL.

THIRD: To warn the sanctioned party that the imposed sanction must be enforced once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it in the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, it will proceed to its collection in the executive period.

Upon receipt of the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, presenting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

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